

Wyoming

GENERAL INFORMATION

1. Wyoming **does not** maintain a list of eligible surplus lines insurers.
2. Wyoming **does not** have a Surplus Lines Association.
3. Wyoming **does** have an Export List (see Other Comments section #1).
4. Wyoming **does** have an industrial insured exemption (see Appendix C). Additionally, Wyoming has adopted the NRRRA exempt commercial purchaser exemption Wyo. Stat. Ann. § 26-11-104(b).
5. **Surplus lines tax:** 3% plus 0.175% SLAS Clearinghouse transaction fee.
6. All new and renewal multistate policies for Wyoming are reported as single state policies through the SLAS Clearinghouse single state reporting platform in SLIP, with 100% of the premium being reported to and taxed by the respective home state.
7. Wyoming **does not** allow the formation of domestic surplus lines insurers in the state.

ELIGIBILITY AND FILING REQUIREMENTS (ALL INSURERS)

Wyoming does not require foreign or alien insurers to provide financial information or remit an application or renewing fee, but has adopted Wyo. Stat. Ann. § 26-11-107 which sets forth minimum eligibility standards for both foreign and alien surplus lines insurers.

ELIGIBILITY AND FILING REQUIREMENTS (FOREIGN INSURERS ONLY)

Wyo. Stat. Ann. § 26-11-107(f) A nonadmitted insurer eligible to place surplus lines insurance or independently procured insurance shall:

- Be authorized to write the kind of insurance in its domiciliary jurisdiction;
- Have established satisfactory evidence of good repute and financial integrity; and
- Be qualified under one (1) of the following subparagraphs:
 - (a) Have capital and surplus or its equivalent under the laws of its domiciliary jurisdiction which equals the greater of:
 - (1) The minimum capital and surplus requirements under the law of this state; or
 - (2) Fifteen million dollars (\$15,000,000.00).

- (b) The requirements of subparagraph (A) of this paragraph may be satisfied by an insurer's possessing less than the minimum capital and surplus upon an affirmative finding of acceptability by the commissioner. The finding shall be based upon such factors as quality of management, capital and surplus of any parent company, company underwriting profit and investment income trends, market availability and company record and reputation within the industry. In no event shall the commissioner make an affirmative finding of acceptability when the nonadmitted insurer's capital and surplus is less than four million five hundred thousand dollars (\$4,500,000).

ELIGIBILITY AND FILING REQUIREMENTS (ALIEN INSURERS ONLY):

For an insurer not domiciled in the U.S. or its territories, the insurer is listed on the Quarterly Listing of Alien Insurers maintained by the NAIC International Insurers Department.

TYPES OF INSURANCE EXEMPTED FROM SURPLUS LINES REGULATION

1. Wet marine and transportation insurance.
2. Insurance on operations of railroads engaged in transportation in interstate commerce and their property used in such operations.
3. Insurance of aircraft owned or operated by manufacturers of aircraft, or aircraft operated in scheduled interstate flight, or cargo of the aircraft, or against liability, other than workers' compensation and employer's liability, arising out of the ownership, maintenance, or use of the aircraft.

OTHER COMMENTS OR REQUIREMENTS

1. Insurance coverages available for export in Wyoming include: liquor dealers liability, lawyers professional liability, accountants professional liability, architects and engineers professional liability, and pension and welfare fund fiduciary responsibility insurance.
2. A broker must ascertain financial condition and compliance with eligibility requirements before placing insurance with a non-admitted insurer Wyo. Stat. Ann. § 26-11-107.
3. The Wyoming Department of Insurance (DOI) issued a Memorandum in 2018 requiring all non-admitted insurance policies issued or renewed and any subsequent endorsements to be filed through the SLAS Clearinghouse and provides guidance for filing policy transaction data, quarterly reports, and premium tax payments.
4. Contact information for the SLAS Clearinghouse is as follows:

SLAS Clearinghouse
(Florida Surplus Lines Service Office)

1441 Maclay Commerce Drive, Suite 200

Tallahassee, FL 32312

Tel: (877) 267.9855

Email: info@slasclearinghouse.com

Website: <https://www.slasclearinghouse.com/>

5. Every new or renewed insurance contract, certificate, cover note, or other confirmation of insurance that is procured and delivered as a surplus lines coverage pursuant to this chapter shall have stamped or printed upon it, in at least ten (10) point bold type font, the name and address of the surplus line broker who procured the coverage, and the following disclosure: **“This insurance contract is issued pursuant to the Wyoming Nonadmitted Insurance Laws by an insurer neither licensed by nor under the jurisdiction of the Wyoming Insurance Department. In the event of insolvency of the surplus lines insurer, losses will not be paid by the Wyoming Insurance Guaranty Association or the Wyoming Life and Health Insurance Guaranty Association.”** (Wyo. Stat. Ann. § 26-11-109(a)). Effective July 2021, the Wyoming legislature passed House Bill No. HB0092, which adjusted the language of the required disclosure stamp.
6. The Wyoming DOI issued a Memorandum regarding changes to the required policy disclosure notices and the diligent effort search requirements. This Memorandum, and additional information and required forms are available at the Department’s website: <https://doi.wyo.gov/companies/surplus-lines>.
7. Per a notice issued in September 2024, the Wyoming DOI requests certain premium and policy information from surplus lines insurers regarding surplus lines insurance that was written in Wyoming for the year 2024 and going forward. This data is necessary to reconcile the premiums written by surplus lines insurers with the premiums reported by non-admitted filers, such as surplus line brokers. Such information is reported online via the Surplus Lines Information Portal. The notice, which contains the information the Wyoming DOI requests, is available at <https://drive.google.com/file/d/1XI0jEiKw6Ybt0QFcTuGbRt8GWK7gc0BE/view>.

Contact Our Insurance + Reinsurance Team

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